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FRANK ZARABI vs SAMAN ZAMAN,
et al.

CASE NO.: 24NWCV02228

HEARING: September 17, 2026 @ 9:30 a.m.

#6

TENTATIVE ORDER

Plaintiff Frank Zarabi's Motion Objecting to
Sufficiency of Undertaking on Appeal is DENIED without prejudice.

Moving party to give notice.

Background

This is a contractual fraud
action. On July 18, 2024, Plaintiff Frank Zarabi ("ZARABI") filed this action
against Defendants Saman Zaman, Affordable Cars Inc., Burton Way Investments,
LLC ("Burton Way"), and Does 1 to 20.

On October 17, 2024, ZARABI filed
the First Amended Complaint, adding Defendant Camzam Investments, Inc.

On December 27, 2024, the Court
entered dismissal without prejudice as to Defendant Affordable Cars Inc., doing

business as Black and White Rent-a-Car.

On January 7, 2025, ZARABI filed the Second Amended Complaint against Defendants Saman Zaman ("ZAMAN"), Affordable Cars Inc., Burton Way Investments, LLC ("Burton Way"), Camzam Investments, Inc. ("Camzam"), and Does 1 to 50.

On February 14, 2025, Defendants/Cross-Complainants ZAMAN, Burton Way, and Camzam filed the Cross-Complaint against ZARABI and Roes 1 to 10. The Cross-Complaint alleges that, in June 2017, Burton Way entered into a valid contract with Mercedes-AMG GmbH ("Mercedes-AMG") to purchase the Vehicle ("Mercedes-AMG Contract"), which would be specially produced and delivered in 2021. ZAMAN discussed a possible transfer of the Vehicle to ZARABI, on the condition that the Vehicle was delivered to Burton Way and all obligations between Mercedes-AMG and Burton Way were complete. Mercedes-AMG experienced production delays, such that the Vehicle's delivery date was delayed multiple times. The Cross-Complaint primarily alleges that ZARABI independently communicated with Mercedes-AMG, despite prior admonitions by ZAMAN not to. Specifically, ZARABI falsely communicated that ZAMAN had entered into a contract with ZARABI to sell the Vehicle in violation of the Mercedes-AMG Contract, which prohibits transfer of rights to the Vehicle for a certain time period after delivery. The Cross-Complaint alleges that Mercedes-AMG terminated the Mercedes-AMG Contract with ZAMAN as a result of ZARABI's communications. The Cross-Complaint alleges the following causes of action: 1) Intentional Interference with Contractual Relations, 2) Intentional Interference with Prospective Economic Advantage, and 3) Negligent Interference with Prospective Economic Advantage.

On July 10, 2025, the Court granted ZARABI's Anti-SLAPP Motion to the Cross-Complaint. (7/10/25 Order.)

On September 24, 2025, ZAMAN, Burton Way, and Camzam filed a Notice of Appeal as to the Court's granting of ZARABI's Anti-SLAPP Motion to the Cross-Complaint.

On October 9, 2025, ZARABI filed the Third Amended Complaint (TAC) against ZAMAN. The TAC alleges that, in March 2018, the parties entered into an agreement via email, by which ZARABI was to pay all Defendants \$300,000.00 in exchange for the rights to a Mercedes AMG-One vehicle. The TAC alleges ZARABI made subsequent payments totaling \$899,000.00. Defendants allegedly committed an anticipatory breach through acts suggesting that Defendants were going to

sell the rights to the AMG-One to a third party. In May 2024, ZARABI exercised his contractual right to cancel the contract and demanded return of the \$899,000.00 plus interest. Defendants returned only \$500,000.00 to ZARABI. Defendants have failed to return the remaining \$399,000.00 of ZARABI's deposit, despite ZARABI's demand.

The TAC alleges the following causes of action: 1) Breach of Written Contract, 2) Breach of Oral Contract, 3) Quantum Meruit, 4) Fraud, 5) Breach of Implied Covenant of Good Faith and Fair Dealing, 6) Violation of Racketeer Influenced and Corrupt Organizations Act (RICO), 7) Unlawful Practice in Sale or Lease of Consumer Goods or Services, 8) Open Book Account/Account Stated, and 9) Money Had and Received.

On February 19, 2026, the Court granted, in part, ZAMAN, Burton Way, and Camzam's Motion to Stay Trial Proceedings Pending Appeal. The Court declined to stay the action as to ZARABI's Motion for Attorney's Fees set to be heard the same day and continued that Motion to May 19, 2026. (2/19/26 Minute Order.)

On May 19, 2026, the Court granted ZARABI's Motion for Attorney's Fees in the amount of \$115,099.00 in attorney's fees and \$2,685.25 in costs (hereinafter, "Fee Order"). (5/19/26 Minute Order.)

On August 18, 2026, ZAMAN, Burton Way, and Camzam filed a Notice of Posting Bond to stay enforcement of money judgment pursuant to Code of Civil Procedure section 917.1. The attached undertaking is in the amount of \$176,676.38, issued by American Contractors Indemnity Company (hereinafter, "Undertaking").

ZARABI now objects to the Notice of Posting Bond pursuant to Code of Civil Procedure section 995.920, subdivision (c). Specifically, ZARABI requests an order "(1) sustaining [ZARABI's] objection to the sufficiency of the undertaking on appeal filed and served on August 17, 2026, by Defendants [...] and (2) approving [ZARABI's] applications for the appearance and examination of [Defendants] [...]." (Notice, 2:5-12.)

Defendants ZAMAN, Burton Way, and Camzam (hereinafter, "Defendants") oppose the Motion.

Legal Standard

“The beneficiary may object to a bond on any of the following grounds: [...] (c) The bond, from any other cause, is insufficient.” (Code Civ. Proc., § 995.920, subd. (c).)

“(a) An objection shall be in writing and shall be made by noticed motion. The notice of motion shall specify the precise grounds for the objection. [...]

(b) The objection shall be made within 10 days after service of a copy of the bond on the beneficiary or such other time as is required by the statute providing for the bond.

(c) If no objection is made within the time required by statute, the beneficiary is deemed to have waived all objections except upon a showing of good cause for failure to make the objection within the time required by statute or of changed circumstances.”

(Code Civ. Proc., § 995.930, subds.

(a)-(b).)

Discussion

ZARABI objects to Defendants' undertaking on two grounds. First, Defendants have failed to file a notice of appeal or amended notice of appeal seeking appellate review of the Fee Order. Second, the Undertaking only names ZAMAN as principal. Burton Way and Camzam are not named on the Undertaking.

The Court will address each argument in turn.

Whether
a Separate Appeal Must be Filed as to the Fee Order

ZARABI argues that Defendants' Undertaking is ineffective to stay enforcement of the Fee Order because Defendants have failed to file a separate notice of appeal for the Fee Order. ZARABI argues that the current pending appeal in Case No. B349929 is only regarding the

Court's July 31, 2025 order granting ZARABI's Anti-SLAPP Motion to Strike Defendants' Cross-Complaint. Such appeal does not encompass the Fee Order.

ZARABI notes that the Court has already rejected the argument that the Fee Order is subject to Code of Civil Procedure section 916, subdivision (a) automatic stay in its February 19, 2026 order on Defendants' Motion to Stay Trial Proceedings Pending Appeal. Specifically, the Court cited to *Dowling v. Zimmerman* ("Dowling") (2001) 85 Cal.App.4th 1400 and Code of Civil Procedure section 917.1, subdivision (a) in holding that enforcement of the Fee Order should not be stayed. The Court had already rejected Defendants' arguments that "the fee order is exempt from the ordinary money-judgment rule because of its relationship to the B349929 appeal." (Mot., 6:19-20.) Defendants cannot now attempt to file an undertaking and rely on the prior Notice of Appeal.

ZARABI further explains that, in *Dowling*, the fee order was part of the judgment on appeal, in contrast to the situation here. The appellant/plaintiff argued that enforcement of the fee order was automatically stayed because it was embraced by the appeal on the anti-SLAPP ruling. (*Dowling*, supra, 85 Cal.App.4th at pp. 1404–1406.) The Court of Appeal held that the money-judgment rule in Code of Civil Procedure section 917.1 required that the appellant/plaintiff post an appeal bond to cover the fee order. (*Id.* at p. 1434.) Here, Defendants' Notice of Appeal clearly does not cover the Fee Order. ZARABI argues that "[i]f the fee award in *Dowling*—baked into the very judgment on appeal and unquestionably before the appellate court—did not receive automatic-stay protection merely because it flowed from the ruling under review, a later, separately entered fee order that was never even made the subject of a notice of appeal has no stronger claim to that protection here." (Mot., 8:21-24.)

ZARABI preemptively argues that there is a distinct line of authority holding that, where a judgment already establishes an entitlement to fees and merely leaves the amount to be later determined, a notice of appeal from the judgment subsumes the later fee order, and no separate appeal is required, citing *Grant v. List & Lathrop* ("Grant") (1992) 2 Cal.App.4th 993, 998. However, such exception does not apply here because the Fee Order "arose from a separate, subsequent motion in which Plaintiff sought fees as the prevailing party on that special motion to strike under section 425.16, subdivision (c)(1)"

and that was “an independent adjudication, not a mere quantification of an entitlement the appealed order already established.” (Mot., 9:18-20.) ZARABI argues that such post-judgment order is appealable in its own right and requires a separate notice of appeal.

In opposition,

Defendants argue that the Court's February 19, 2026 order essentially declined to impose a stay because Defendant had not posted an undertaking. Defendants have now posted an undertaking, and thus, enforcement of the Fee Order should be stayed pursuant to Dowling.

Defendants argue

that the exception in the Grant case applies here—specifically, when a judgment awarded fees and provides for later determination of the amount of the fees, the notice of appeal as to that judgment “subsumes” any subsequent order setting the amount of the award. Here, the Court adjudicated ZARABI's entitlement to attorney's fees in its July 31, 2025 order on the anti-SLAPP Motion, and the May 19, 2026 order on the Motion for Attorney's Fees merely quantified the amount of fees awardable. Thus, no separate notice of appeal is needed for the Fee Order because it is “subsumed” into the appeal of the anti-SLAPP Motion order.

In reply, ZARABI

argues that the Grant case is distinguishable, because the appellant in that case affirmatively moved the Court of Appeal to construe its notice of appeal to reach the subsequent fee order. (Grant, *supra*, 2 Cal.App.4th at p. 998.) The Court of Appeal granted that motion. (*Ibid.*) Defendants have taken no similar action in its appellate case. Thus, any “subsummation” arguments should be addressed by the Court of Appeal.

ZARABI reiterates

that Defendants' position that the Notice of Appeal subsumes the Fee Order is directly contradicted by its arguments made in the Motion to Stay Trial Proceedings Pending Appeal. In that Motion, Defendants conceded that enforcement of the Fee Order was not automatically stayed pursuant to its Notice of Appeal and asked the Court to exercise its discretion in staying enforcement.

Firstly, the Court

notes that an order granting attorney's fees rendered subsequent to a ruling on an anti-SLAPP motion is not within the scope of the statutory

provisions for direct appeal of a ruling on an anti-SLAPP motion. (See

Doe v. Luster (“Luster”) (2006) 145 Cal.App.4th 139, 145-150.) However, the Court acknowledges that, when an attorney’s fees order is rendered after a judgment of dismissal upon granting the anti-SLAPP motion, the order is directly appealable under Code of Civil Procedure section 904.1, subdivision (a)(2) as an order after an appealable judgment. (See *Melbostad v. Fisher* (2008) 165 Cal.App.4th 987, 993, citing *Luster*, supra, 145 Cal.App.4th pp. 147-149.) Here, the parties essentially concede that the Court’s order granting ZARABI’s anti-SLAPP Motion was a final judgment and that the Fee Order is a post-judgment order.

ZARABI is correct

that, generally a post-judgment order awarding or denying costs and/or attorney fees is appealable. (See *Apex LLC v. Korusfood.com* (2013) 222 Cal.App.4th 1010, 1015.) Further, when a party wishes to appeal a final judgment and a post-judgment attorney’s fees order, the normal procedure is to file to separate appeals for each order. (See *Torres v. City of San Diego* (2007) 154 Cal.App.4th 214, 222.)

However, a

separate appeal from such an order is not always required to ensure vacatur of an attorney’s fees award upon reversal of the underlying judgment. The Court finds that the reasoning of the *Grant* case applies here. “[W]hen a judgment awards costs and fees to a prevailing party and provides for the later determination of the amounts, the notice of appeal subsumes any later order setting the amounts of the award.” (*Grant*, supra, 2 Cal.App.4th at p. 998; see also *Green v. County of Riverside* (2015) 238 Cal.App.4th 1363, 1373 [“A cost award that is incidental to a judgment may be challenged on an appeal from the judgment even though the amount of costs was filled in on the judgment after the notice of appeal was filed.”].) In other words, where a judgment awards unspecified attorney’s fees and provides for later determination of the amount (e.g., via a fee motion), the failure to file a separate appeal from the subsequent fee order does not preclude review of the order on appeal from the underlying judgment. In effect, such principle establishes that a separate appeal is permitted, but not required, for appellate review of the post-judgment order.

Although the *Grant*

case did not involve an underlying anti-SLAPP motion, the Court finds that its

reasoning applies here. In the Court's order on the anti-SLAPP Motion, the Court held the following:

"As the prevailing party, ZARABI is entitled to reasonable attorney's fees, which may be requested in a separately noticed motion. (Code Civ. Proc. § 425.16(c){1}. 'Any SLAPP defendant who brings a successful motion to strike is entitled to mandatory attorney fees.' (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1131.)

ZARABI does not address attorney's fees and costs in the Motion. ZARABI may file a separate motion to seek such fees and costs."

(7/31/25 Order.)

The Court agrees with Defendants that the Court's order established that ZARABI was entitled to attorney's fees under the anti-SLAPP statute and the only remaining issue was the amount of costs. This is the exact situation contemplated by Grant. Thus, the Court is not persuaded by ZARABI's argument that the Undertaking is void because no separate notice of appeal was filed as to the Fee Order. Setting aside the separate notice of appeal issue, under Dowling and Code of Civil Procedure section 917.1, the Court finds that a stay of enforcement of the Fee Order is appropriate pursuant to Defendants' filing of an Undertaking.

Failure to Name Burton Way and
Camzam on Undertaking

ZARABI separately argues that the Undertaking is invalid as to Burton Way and Camzam because it only names ZAMAN as the principle. ZARABI asserts that "[a]n undertaking naming only one of several jointly and severally liable judgment debtors cannot stay enforcement against the debtors it does not name or bind." (Mot., 10:12-13.)

In opposition, Defendants argue that ZARABI cites no authority for its contention. Defendants assert that the amount of the Undertaking complies with Code of Civil Procedure section 917.1 [requiring that the amount be one and one-half times the amount of the judgment if given by an admitted surety insurer]. Defendants note that ZAMAN is the president and sole owner of Camzam and is the managing member,

CEO, and 90-95 percent owner of Burton Way. (DiGiannantonio Decl., ¶ 9, Ex. I.) Defendants assert that “amending or supplementing the bond to include Camzam and Burton Way would be a far less onerous and wasteful process than Zarabi’s request to pursue examination of the Defendants.” (Opp., 9:23-26.)

In reply, ZARABI reiterates its argument that the Undertaking is not binding on Camzam and Burton Way. ZARABI argues that the Court “should approve [ZARABI’s] debtor examination application as to all three judgment debtors, or at minimum as to Burton Way and Camzam, regardless of its ruling on Zaman.” (Reply, p. 8.)

The Court finds that ZARABI provides no authority that ZAMAN cannot file the Undertaking on behalf of all Defendants. The purpose of the Undertaking is accomplished. Thus, the Court is not persuaded that the failure to name Camzam and Burton Way on the Undertaking is grounds for objection.

Conclusion

Accordingly, ZARABI’s Motion Objecting to Sufficiency of Undertaking on Appeal is denied without prejudice.

ZARABI’s request to approve his applications for debtor’s appearance and examination of Defendants is denied.